

DELSTARFORD WORKS

CORPORATE CONSTITUTION & OPERATIONAL MANUAL

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STRATEGIC FOUNDATION

1.0 Vision Statement

To establish **Delstarford Works** as the premier Pan-African nexus where artificial intelligence, advanced biotechnology, and rigorous data science converge. We envision a future where African problems in agriculture, healthcare, and finance are solved by African-built algorithms and validated scientific research, creating a self-sustaining ecosystem of innovation that rivals global standards.

2.0 Mission Statement

Our mission is to dismantle the traditional "employee-employer" hierarchy and replace it with a **Meritocratic Consortium**. We exist to:

1. **Empower Specialists:** Provide a platform for AI Engineers, Data Scientists, and Biochemists to own the fruits of their labor.
2. **Commercialize Science:** Bridge the "Valley of Death" between academic research and market-ready commercial products.
3. **Validate Truth:** Use data and rigorous testing to provide clients with solutions that are not just innovative, but mathematically and scientifically proven to work.

3.0 Core Philosophy: "Equity through Innovation"

- **The Job-First Principle:** We do not eat from investment capital; we eat from revenue. If there is no client output, there is no income. This keeps us lean, hungry, and focused on value.
- **Interdisciplinary Synergy:** We reject silos in thought. The AI Engineer must understand the Biochemist's data; the Market Researcher must understand the AI's limitations. True innovation happens at the intersection of disciplines.
- **Radical Transparency:** Every member, regardless of rank, has the right to see the financial breakdown of a project they worked on. Trust is our currency.

PART 1: THE SERVICE BUSINESS MODEL

1.0 Executive Summary

DELSTARFORD WORKS is incorporated in Kenya as a specialized Service Provider Consortium. Unlike traditional tech firms that hire staff on fixed low wages to maximize owner profit, we operate as a **Distributed Cooperative**.

We do not sell physical widgets; we sell **High-Value Intellectual Capital**. Our clients—ranging from Agrotech firms to Financial institutions—hire us to solve problems that require a fusion of hard science (Biology/Physics) and digital intelligence (AI/Data).

The "Shares" Concept: In this document, "Shares" does not refer to publicly traded stock. It refers to **Internal Profit-Sharing Units**. These units determine what percentage of a specific project's payout a member receives.

2.0 Operational Structure (The "Silo" System)

To manage complexity, the company is divided into five specialized operational units known as "Silos."

Silo 1: The Silicon Silo (AI & Engineering)

- **Focus:** The digital brain.
- **Personnel:** AI Engineers, Machine Learning Architects, DevOps Engineers.
- **Output:** Predictive models, automation scripts, neural networks, app backends.

Silo 2: The Analytic Silo (Data Science)

- **Focus:** The validator.
- **Personnel:** Data Analysts, Statisticians, Mathematicians.
- **Output:** Data cleaning, visualization dashboards (PowerBI/Tableau), hypothesis testing, error rate analysis.

Silo 3: The Insight Silo (Market Strategy)

- **Focus:** The navigator.
- **Personnel:** Market Research Analysts, Economists, Business Strategists.
- **Output:** Feasibility studies, consumer sentiment analysis, competitor intelligence, financial modeling.

Silo 4: The Life Science Silo (Biochemistry)

- **Focus:** The organic engine.
- **Personnel:** Biochemical Specialists, Lab Technicians, Pharmacologists.
- **Output:** Wet-lab experiments, chemical analysis, soil testing, drug compound modeling.

Silo 5: The Physical Interface Silo (Biophysics & Hardware)

- **Focus:** The bridge between matter and data.
- **Personnel:** Biophysical Specialists, Structural Biologists, IoT Hardware Engineers.
- **Output:** Molecular dynamics simulations, sensor calibration, hardware-software integration.

3.0 Value Proposition (Detailed Services)

We offer a comprehensive suite of high-tech and scientific services designed to modernize industries and solve complex problems.

1. Enterprise Software & Digital Platforms

- **Description:** End-to-end development of robust digital ecosystems tailored to client needs.
- **Deliverables:** Custom Mobile Applications (Android/iOS), Responsive Corporate Websites, and Desktop Management Software.

2. Robotics & Industrial Automation

- **Description:** Engineering bespoke hardware solutions to automate manual processes.
- **Deliverables:** Autonomous Robots, Smart Manufacturing Machines, and IoT (Internet of Things) Sensor Networks.

3. Service Industry Digitization

- **Description:** Revolutionizing traditional service sectors through smart technology.
- **Deliverables:** Management systems for Hospitality (Catering/Hotels), Beauty Industry Booking Engines, and Retail Inventory AI.

4. Algorithmic Business Intelligence

- **Description:** deploying custom AI agents that automate complex business decisions.
- **Deliverables:** Dynamic pricing models, predictive stock market bots, and customer sentiment analysis tools.

5. Biochemical & Scientific Analysis

- **Description:** Rigorous wet-lab testing and product formulation.
- **Deliverables:** Soil analysis for Agrotech, chemical viability testing for Pharma, and synthetic material development.

6. Integrated Cyber-Physical Systems

- **Description:** Bridging the gap between software and the physical world.
- **Deliverables:** Hardware that reacts to software commands (e.g., App-controlled irrigation systems).

4.0 The Revenue Cycle (From Awareness to Cash)

1. **Advertisement & Client Outreach:** The cycle begins with strategic advertisement and brand positioning to attract high-value clients.
2. **Acquisition:** The Insight Silo identifies a lead or a client approaches us based on our advertisements.
3. **Proposal:** A cross-functional team (one member from relevant Silos) drafts a technical proposal and quote.
4. **Contract:** The Director signs the Service Level Agreement (SLA).
5. **Execution:** The project is broken into milestones and executed by the Silos.
6. **Invoicing:** Upon milestone completion, an invoice is issued.
7. **Distribution:** Within 48 hours of payment receipt, funds are split according to the Financial Constitution.

PART 2: THE CONSTITUTION AND BYLAWS

PREAMBLE We, the professionals and specialists of Delstarford Works, exercising our constitutional right of association under Article 36 of the Constitution of Kenya (2010), hereby enact this Constitution. We pledge to uphold integrity, excellence, and fairness in all our dealings, binding ourselves to the rules herein to ensure the prosperity of the collective.

ARTICLE I: NAME, PURPOSE & DEFINITIONS

Section 1. Name The legal name of the entity shall be **DELSTARFORD WORKS** (hereinafter referred to as the "Company").

Section 2. Purpose To operate as a commercially viable entity that bridges the gap between scientific research and technological application, ensuring that the wealth generated by innovation is shared equitably among the creators.

Section 3. Definitions

- **"High Council"**: The supreme governing body of the Company.
- **"Active Partner"**: A member who is currently engaged in at least one active project.
- **"Gross Revenue"**: Total money received from a client before any deductions.
- **"Net Distributable Income"**: Revenue remaining after the mandatory 40% Company deduction.
- **"Silo"**: A specialized department within the company.

ARTICLE II: MEMBERSHIP FRAMEWORK & TENURE

Section 1. Criteria for Membership Membership is not open to the general public. It is by invitation or application only. Candidates must demonstrate:

- **Technical Proficiency**: Evidence of skills in Python, R, Lab Techniques, or Market Research.
- **Professionalism**: A history of ethical conduct.
- **Availability**: Ability to commit at least 15 hours per week to Company projects.

Section 2. Classes of Membership

1. Probationary Member (The Rookie):

- **Duration**: First 3 months or first completed project.
- **Rights**: Can work on projects and earn income. No voting rights.

2. Active Partner (The Vesting Member):

- **Criteria**: Successfully completed probation and ratified by the High Council.
- **Rights**: Full voting rights, eligible for "Surge Bonuses," eligible for High Council seats.

3. Fellow (The Senior Partner):

- **Criteria**: 2+ years of service and exceptional contribution.
- **Rights**: Veto power on specific technical decisions in their Silo.

Section 3. Termination of Membership Membership may be terminated by:

- Voluntary resignation (requires 30 days notice).
- Expulsion for disciplinary reasons (See Article XII).
- Dormancy (failure to participate in any project for 6 consecutive months).

ARTICLE III: THE FINANCIAL CONSTITUTION (REVENUE DISTRIBUTION)

This Article is the "Holy Grail" of Delstarford Works. It dictates exactly how money flows. It is non-negotiable without a unanimous vote.

Section 1. The Revenue Split Protocol Upon the clearance of a client payment, the funds are immediately subjected to a 40-20-40 Split.

A. The Company Fund (40%)

- **Purpose:** This is the "Treasury." It ensures the lights stay on and the company remains legal.
- **Utilization:**
 1. **Taxation:** Withholding Tax, VAT, and Income Tax payments to KRA.
 2. **Operational Costs:** Server hosting (AWS/Azure), Domain renewals, Lab reagents, Rent.
 3. **Welfare:** Medical emergency fund (See Article XIII).
 4. **Growth:** Marketing budgets and R&D for internal products.

B. The Silicon Priority Share (20%)

- **Purpose:** Recognizing that AI and Software Engineering form the backbone of modern delivery, and often involve the highest intensity of continuous maintenance, this 20% is reserved for the **AI Engineers** on the specific project.
- **Distribution Logic:**
 - If 1 AI Engineer: Takes the full 20%.
 - If 2+ AI Engineers: Split based on logged hours.

C. The General Partner Pool (40%)

- **Purpose:** This is the reward pool for the rest of the ecosystem.
- **Beneficiaries:** Data Analysts, Market Researchers, Biochemical Specialists, Biophysical Specialists.
- **Distribution Logic:** Divided among the working team members based on a "Point System" determined by the Project Manager at the start of the project (complexity x hours).

Section 2. Visual Distribution Matrix

Client Payment	Allocation	Recipient/Purpose

KES 100,000	40% (KES 40,000)	Company Treasury (Tax, Ops, Welfare)
	20% (KES 20,000)	Silicon Silo (AI Engineers only)
	40% (KES 40,000)	Partner Pool (Bio, Data, Market, Physics)

Section 3. Payment Timelines

- Share distributions are processed via Bank Transfer or M-PESA.
- Distributions must occur within **48 hours** of the funds reflecting in the Company’s main account.
- Late payments by the Company to Members attract a 5% penalty payable to the Member from the Company Fund.

ARTICLE IV: GOVERNANCE & THE HIGH COUNCIL

Section 1. The High Council The Company is governed by a Board of Directors known as the "High Council." It consists of 5 seats, one representing each Silo.

Section 2. The Director & Principal Architect

- **Role:** The Executive Head (currently Delstarford).
- **Powers:**
 - Signatory on all bank accounts.
 - Final tie-breaking vote in Council meetings.
 - Representative of the Company in legal matters.

Section 3. Senior Lead Innovators (Council Members)

- **Selection:** Elected by the members of their respective Silos annually.
- **Role:** Represent the interests of their Silo (e.g., Head of Biosciences fights for better lab equipment).
- **Term:** 1 Year, renewable.

Section 4. Junior Lead Innovators (Project Managers)

- **Role:** Appointed on a per-project basis.
- **Authority:** They have absolute authority over the timeline and task delegation of their specific project.

ARTICLE V: ROLES, RESPONSIBILITIES & COMPETENCY FRAMEWORKS

Section 1. AI Engineers (The Silicon Silo)

- **Core Mandate:** Build the automation and intelligence layer.
- **Daily Tasks:**
 - Training ML models using PyTorch/TensorFlow.

- Building APIs using Flask/FastAPI/Django.
- Managing Cloud Infrastructure (Docker/Kubernetes).
- KPIs: Code stability, Model accuracy (>90%), API response time.

Section 2. Data Analysts (The Analytic Silo)

- **Core Mandate:** Validate truth through numbers.
- **Daily Tasks:**
 - Cleaning messy client datasets (Pandas/SQL).
 - Creating visual dashboards for client reports.
 - Conducting A/B testing on AI models.
- KPIs: Report accuracy, Data integrity, Insight clarity.

Section 3. Biochemical Specialists (The Life Science Silo)

- **Core Mandate:** Manage the wet-lab and biological interface.
- **Daily Tasks:**
 - Sample collection and analysis (soil, water, tissue).
 - Chemical formulation.
 - Ensuring lab safety compliance (OSHA/ISO).
- KPIs: Experiment reproducibility, Safety record, Sample turnaround time.

Section 4. Market Research Analysts (The Insight Silo)

- **Core Mandate:** Ensure commercial viability.
- **Daily Tasks:**
 - Competitor analysis and SWOT Analysis.
 - Pricing strategy modeling.
 - Client pitch deck preparation.
- KPIs: Lead conversion rate, Accuracy of revenue projections.

Section 5. Biophysical Specialists (The Physical Interface Silo)

- **Core Mandate:** Bridge biological matter with physical laws.
- **Daily Tasks:**
 - Molecular modeling.
 - Hardware sensor calibration.
 - Thermodynamic analysis of biological systems.
- KPIs: Simulation accuracy, Hardware uptime.

ARTICLE VI: INTELLECTUAL PROPERTY (IP) & ASSET MANAGEMENT

Section 1. Work for Hire Doctrine Any code, formula, report, or design created by a Member while working on a paid client project is deemed "Work for Hire." The IP rights usually transfer to

the Client upon full payment, unless the contract states otherwise.

Section 2. Internal IP (The "Delstarford Assets") Any internal tool, library, framework, or proprietary algorithm developed by the Company to assist in delivering services remains the **Exclusive Property of Delstarford Works**. Members cannot take these tools with them if they leave.

Section 3. Patenting Strategy

- If a project results in a patentable invention, the Company shall pay for the filing.
- **Ownership:** The Patent is owned by Delstarford Works.
- **Inventor Credit:** The individual members who created it are listed as "Inventors."
- **Royalties:** If the Patent is licensed, 50% of royalties go to the Inventors, 50% to the Company.

ARTICLE VII: DISPUTE RESOLUTION MECHANISM

Section 1. Internal Mediation (Step 1) Any dispute between members (e.g., over share splits or credit) must first be brought to the High Council. The Director will appoint a neutral Council Member to mediate.

Section 2. The "Log-Book" Rule In disputes regarding work contribution, the **GitHub Commit Log** (for coders) or the **Lab Notebook/Timesheet** (for scientists) is the final authority. If it is not logged, it did not happen.

Section 3. Arbitration (Step 2) If internal mediation fails, the dispute shall be referred to Arbitration under the **Arbitration Act, 1995 (Kenya)**. The seat shall be Nairobi. The costs of arbitration shall be borne by the losing party. Litigation in court is discouraged and viewed as a last resort.

ARTICLE VIII: LEGAL COMPLIANCE, DATA PROTECTION & TAXATION

Section 1. Data Protection Act (2019)

- Delstarford Works is a Data Processor.
- **Strict Rule:** No client data (medical records, financial data) may be stored on personal laptops. It must remain on the Company's encrypted cloud servers.
- Breach of this rule is Gross Misconduct.

Section 2. Taxation Compliance

- The Company acts as a Withholding Agent.
- All Member payouts are subject to applicable Kenyan taxes. Members are responsible for filing their own annual returns, but the Company will provide tax certificates.

ARTICLE IX: CONFIDENTIALITY, NON-COMPETE & SECURITY

Section 1. The Non-Disclosure Agreement (NDA) Membership is conditional upon signing the NDA. This covers:

- Client Client lists.
- Proprietary Algorithms.
- Unreleased financial data.

Section 2. Non-Compete Clause Active Members are permitted to hold other jobs *provided* those jobs are not with direct competitors (other Innovation Consultancies) in the same market. Freelancing is allowed if it does not use Delstarford IP.

Section 3. Non-Solicitation For a period of 12 months after leaving the Company, a former member may not approach current Delstarford clients to offer competing services, nor poach current Delstarford staff.

ARTICLE X: MEETINGS & PARLIAMENTARY PROCEDURE

Section 1. The Annual General Meeting (AGM)

- **Timing:** Held once a year in January.
- **Agenda:** Financial Report, Election of High Council, Strategy for the New Year.
- **Voting:** One Member, One Vote.

Section 2. The Weekly Standup

- **Timing:** Every Monday Morning (Virtual).
- **Duration:** Max 45 Minutes.
- **Focus:** Project status updates and blocker removal.

Section 3. Quorum A quorum for binding decisions is **50% of Active Partners**. For Constitutional Amendments, a quorum of **75%** is required.

ARTICLE XI: CODE OF CONDUCT & PROFESSIONAL ETHICS

Section 1. Professionalism

- **Language:** Official communication is English.
- **Responsiveness:** Members on active projects must respond to internal communications within 4 hours during business days.

Section 2. Scientific Integrity

- Falsifying data to please a client is **Grounds for Immediate Expulsion**. We stand by the data, even if the news is bad.
- Plagiarism of code or scientific papers is strictly forbidden.

Section 3. Substance Abuse

- Zero tolerance for intoxication during client meetings or sensitive lab work.

ARTICLE XII: DISCIPLINARY FRAMEWORK & PENALTIES

To maintain order, the following penalty structure applies:

Section 1. Category A: Operational Negligence (Penalty: 3% Share Deduction)

- Late submission of deliverables > 24 hours.
- Missing a scheduled client meeting without notice.
- Disrespectful conduct in internal chats.

Section 2. Category B: Major Infractions (Penalty: Suspension + 50% Share Forfeit)

- Gross negligence resulting in client loss.
- Sharing passwords/credentials.
- Repeated Category A offenses.

Section 3. Category C: "Treason" / Gross Misconduct (Penalty: Expulsion + Legal Action)

- Theft of funds or IP.
- Selling client data.
- Sabotage of Company systems.
- *Note: Category C offenses trigger an automatic report to the Police.*

ARTICLE XIII: WELFARE, BONUSES & MEMBER BENEFITS

Section 1. The "Surge" Bonus Members who work critical overtime (nights/weekends) to meet a tight deadline are eligible for a Surge Bonus, paid from the Company Fund (40% allocation).

Section 2. Medical Support If an Active Partner is hospitalized, the Company Fund will contribute 20% of the net bill (after insurance) as a compassionate gesture.

Section 3. Training & Upskilling The Company will sponsor 50% of the cost for any certification (e.g., AWS Cloud Practitioner, Google Data Analyst) relevant to the member's role, provided they pass the exam.

ARTICLE XIV: DISSOLUTION & AMENDMENTS

Section 1. Amendments This Constitution can be amended by a 2/3rds Majority Vote of the High Council, ratified by a simple majority of the Active Partners.

Section 2. Dissolution In the event the Company is dissolved:

1. All debts and taxes are paid first.
2. Remaining assets are liquidated.
3. Proceeds are distributed to Active Partners based on their tenure and accumulated contribution points.

PART 3: ONBOARDING & REGISTRATION

NEW MEMBER REGISTRATION FORM

(To be completed in Block Letters)

1. PERSONAL BIO-DATA

- Full Legal Name: _____
- ID/Passport Number: _____
- KRA PIN: _____
- Date of Birth: __ / __ / _____
- Nationality: _____
- Physical Residential Address: _____
- Private Email: _____
- Mobile Number: _____

2. ROLE DESIGNATION

- Applying For:

AI Engineer

Data Analyst

Biochemist

Market Researcher

- Primary Coding Languages/Tools: _____
- Highest Academic Qualification: _____

3. FINANCIAL REMITTANCE DETAILS *(Must match ID Name)*

- Bank Name: _____
- Account Number: _____
- Branch: _____
- OR Mobile Money Number: _____

4. COMPLIANCE CHECKLIST (Attach Copies)

- National ID / Passport
- KRA PIN Certificate
- Resume / CV
- Passport Photo

5. DECLARATION & OATH I, the undersigned, having read the **Delstarford Works Corporate Constitution**, do hereby agree to abide by its laws, the 40-20-40 revenue split, and the Code of Conduct. I understand that my membership is performance-based and that violation of the NDA will lead to legal consequences.

Signature: _____ Date: __ / __ / __

OFFICIAL USE ONLY (HR/ADMIN)

- Recruited By: _____
- Silo Assigned: _____
- Member ID: _____
- Status:

PROBATIONARY

REJECTED